

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Christian Jett	Team: Squad #11	CCRB Case #: 202501739	☒ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Monday, 09/02/2024 10:08 PM	Location of Incident: Schenectady Avenue and Prospect Place	18 Mo. SOL 3/2/2026	Precinct: 77
Date/Time CV Reported Thu, 02/20/2025 5:02 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Thu, 02/20/2025 5:02 PM

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. PO Anthony Orlando	09744	964687	081 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO Oliver Veras	20343	968869	081 PCT
2. PO Hubert Mohamed	12072	976272	083 PCT
3. PO Manuel Formoso	01331	970523	INT FIO PRG
4. SGT Matthew Arvelo	01139	954505	083 PCT
5. PO Albert Barbosa	08600	968954	083 PCT
6. PO Alexander Leon	16065	949885	083 PCT
7. PO Alfredo Vazquez	09596	965595	083 PCT
8. PO Isaac Quarshie	21243	968075	079 PCT
9. PO Demitrious Peterson	20688	971609	079 PCT

Officer(s)	Allegation	Inv. Div. Recommendation
A . PO Anthony Orlando	Abuse: Police Officer Anthony Orlando refused to provide his name to § 87(2)(b)	A . Within NYPD Guidelines
B . PO Anthony Orlando	Abuse: Police Officer Anthony Orlando refused to provide his shield number to § 87(2)(b)	B . Within NYPD Guidelines
C . PO Anthony Orlando	Force: Police Officer Anthony Orlando used physical force against § 87(2)(b)	C . Substantiated
D . PO Anthony Orlando	Abuse: Police Officer Anthony Orlando interfered with § 87(2)(b) use of a recording device.	D . Substantiated
E . PO Anthony Orlando	Abuse: Police Officer Anthony Orlando damaged § 87(2)(b) property.	E . Substantiated
F . PO Anthony Orlando	Abuse: Police Officer Anthony Orlando failed to activate his body-worn camera.	F . Substantiated

Case Summary

On February 20, 2025, § 87(2)(b) filed this complaint with the CCRB online.

On September 2, 2024, § 87(2)(b) was celebrating Labor Day weekend with a group of his friends on the corner of Schenectady Avenue and Prospect Place in Brooklyn. PO Anthony Orlando of the 81st Precinct approached the group and looked around the area in which they were congregated. § 87(2)(b) asked PO Orlando for his name and shield number which was allegedly not provided (**Allegations A and B: Abuse of Authority, Within NYPD Guidelines**). As PO Orlando walked away, § 87(2)(b) followed him closely while recording using his cellphone. PO Orlando slapped § 87(2)(b) hand which interfered with § 87(2)(b) recording (**Allegation C: Force, Substantiated**) (**Allegation D: Abuse of Authority, Substantiated**). § 87(2)(b) cellphone was launched into the air and fell onto the ground, causing damage to the phone (**Allegation E: Abuse of Authority, Substantiated**). PO Orlando did not activate his BWC during the incident (**Allegation F: Abuse of Authority, Substantiated**).

The investigation received cellphone footage from § 87(2)(b) recorded by an unidentified friend of his [Board Review 01]. The investigation also received cellphone video of the incident recorded by § 87(2)(b) [Board Review 02].

§ 87(2)(b) was not arrested or issued summonses during the incident.

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Anthony Orlando refused to provide his name to § 87(2)(b)

Allegation (B) Abuse of Authority: Police Officer Anthony Orlando refused to provide his shield number to § 87(2)(b)

Cellphone footage recorded by § 87(2)(b) [Board Review 02] from durational timestamp 00:00 depicts PO Orlando looking around using a flashlight as § 87(2)(b) and another individual are speaking to him in elevated tones. § 87(2)(b) asks PO Orlando what his name and “badge number” were and PO Orlando turns to § 87(2)(b) who captures PO Orlando’s name and shield number on video. § 87(2)(b) states, “We got it.” At 00:08, PO Orlando asks, “You got it?” He turns away and § 87(2)(b) cellphone is hit and falls to the ground.

§ 87(2)(b) stated [Board Review 03] that he was standing on the sidewalk with eight of his friends when PO Orlando arrived in an unmarked sedan beside § 87(2)(b) and exited the vehicle. PO Orlando looked around the area with his flashlight and did not speak to anyone. § 87(2)(b) asked PO Orlando for his name and shield number, but PO Orlando did not respond or acknowledge the request though he was able to capture PO Orlando’s name and shield number on his video during the interaction.

PO Orlando stated [Board Review 04] that he was in his vehicle when he heard what sounded like fireworks or gunshots nearby. He went to the location where he believed he heard the noise and exited his vehicle. He approached the group of individuals to see if there were any fireworks or shell casings on the ground in the immediate vicinity. As he approached the group, they became hostile, and § 87(2)(b) was especially angry at PO Orlando. The group was yelling and cursing at him. After reviewing cellphone footage, PO Orlando acknowledged hearing a request being made for his “badge number.” He explained that during the incident, it was loud with everyone yelling and cursing, he had a migraine headache, and all he heard was yelling and cursing. PO Orlando also did not know whether § 87(2)(b) was recording when he was using the flashlight on his cellphone.

NYPD Administrative Guide Procedure 304-11 [Board Review 05] directs uniformed members of the service during interactions with members of the public to: 1. Courteously and clearly state your rank, name, shield number and command, or otherwise provide them, to anyone who requests you to do so.

Cellphone footage shows that § 87(2)(b) obtained PO Orlando’s name and shield number on his cellphone video recording, but that PO Orlando did not verbally state his name and

shield number. The requests were made loudly and in close proximity to PO Orlando who seemingly acknowledged the request after § 87(2)(b) stated, "...we got it," by asking whether § 87(2)(b) "got it." § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b) it is recommended that **Allegations A and B** be closed as **Within NYPD Guidelines**.

Allegation (C) Force: Police Officer Anthony Orlando used physical force against § 87(2)(b)

Allegation (D) Abuse of Authority: Police Officer Anthony Orlando interfered with § 87(2)(b) use of a recording device.

Cellphone footage provided by an unidentified friend of § 87(2)(b) [Board Review 01] depicts PO Orlando beginning to walk away from the group at 00:10. The lighting conditions of the corner are very dark. § 87(2)(b) is yelling at him angrily and recording using flash on his phone. He is recording close to PO Orlando's face and PO Orlando asks, "You good?" as he walks away. PO Orlando shines his flashlight at eye level toward § 87(2)(b) obstructing his camera and temporarily obstructing § 87(2)(b) unidentified friend's footage. § 87(2)(b) follows PO Orlando closely and shines the light from approximately one foot from PO Orlando's face. While walking away, in one swift motion and without warning, PO Orlando swipes his left hand upward and across his body and slaps § 87(2)(b) hand, launching the cellphone several feet in the air above their heads. The phone loudly crashes against the ground. After hitting the phone, PO Orlando tells him to get the phone out of his face. PO Orlando continues to walk to the police vehicle, enters it and leaves the scene. As he is walking away, there are four uniformed police officers present on the corner of the block and PO Orlando's partner in an unmarked sedan. The condition of § 87(2)(b) cellphone is not captured by footage.

§ 87(2)(b) cellphone video recording [Board Review 02] depicts the proximity which § 87(2)(b) was recording PO Orlando while using flash. § 87(2)(b) appears to be within a foot of PO Orlando recording his chest where his nameplate and shield are. At 00:06 § 87(2)(b) positions his camera at PO Orlando's shoulder height as PO Orlando shines his flashlight at § 87(2)(b) causing the footage to become partly obstructed for a moment. PO Orlando asks if § 87(2)(b) was "good," and asks § 87(2)(b) "You got it?" PO Orlando does not try to move the phone away from him before hitting it onto the ground.

§ 87(2)(b) stated [Board Review 03] that he began to record using his iPhone using flash. He was recording PO Orlando from approximately three feet. Without issuing any commands or making any statements, PO Orlando was walking away and swiped his hand, hitting the cellphone and § 87(2)(b) hand. The phone was hit out of § 87(2)(b) hand, and it fell onto the ground.

PO Orlando stated [Board Review 04] that as he approached the group to investigate the sound he heard moments before, the group became hostile. § 87(2)(b) was especially hostile and angry, yelling and cursing at PO Orlando. After looking around the area, he began walking back toward his vehicle when § 87(2)(b) began to follow him closely and shine the phone flashlight approximately one foot from his face. PO Orlando did not know whether § 87(2)(b) was recording using his phone. This interfered with PO Orlando's ability to see and since § 87(2)(b) was already hostile, PO Orlando feared his safety since he was unable to see § 87(2)(b) hands or any of the group behind him. The lighting conditions were very dark, and PO Orlando also suspected § 87(2)(b) was under the influence because he had observed open containers of alcohol nearby, saw that his eyes were bloodshot, and based on his hostile and angry demeanor. PO Orlando felt that if he continued walking, he could have had something thrown at him or someone hit him because he was in a vulnerable position. PO Orlando did not know why § 87(2)(b) was approaching him closely and why he was impairing his vision with the flash from his phone and

moved the phone out of the way. PO Orlando denied striking, slapping, or hitting § 87(2)(b) or his phone. He considered his action to be “moving” the phone out of his face, and his reaction to § 87(2)(b) sticking the flash so close to him resulted in § 87(2)(b) having his phone slip out of his hand. PO Orlando also noted that he had worked the night before and was experiencing a migraine headache. PO Orlando suggested that § 87(2)(b) might not have been holding onto his phone with a tight grip, or that he dramatized the situation and may have released the phone “to hype up the situation.” When § 87(2)(b) was following PO Orlando closely and pointing the flash in his face, he was committing a crime by acting disorderly and obstructing PO Orlando’s ability to conduct his investigation safely and effectively. After reviewing cellphone footage, PO Orlando was unable to note when he believed he commanded § 87(2)(b) to remove the phone from his face before making physical contact with § 87(2)(b). After reviewing the cellphone footage frame-by-frame, PO Orlando held his position that he did not hit the phone because he did not intend to, and that all he intended to do was remove the flash from his face and move § 87(2)(b) hand away.

NYPD Administrative Guide Procedure 304-21 [Board Review 07] describes the course of actions for members of service to take when encountering an individual observing, photographing, and/or recording police activity. It notes that an individual can be arrested for Obstruction of Governmental Administration (New York State Penal Law § 195.05) when probable cause to believe the person(s) is obstructing governmental administration can be established. Actual interference with the performance of an official police function is required. Interference can include actual physical force (touching or physically interfering with the officer or the suspect, (e.g. using a camera so close to the officer’s face that it intentionally obstructs their view), intruding into the physical space necessary to safely perform police operations and refusing to obey an order to move back, or purposefully engaging in passive behavior that prevents an officer from taking enforcement action (e.g., blocking a prisoner van, etc.).

NYPD Patrol Guide Procedure 221-01 [Board Review 08] provides officers with guidelines for the issuance of force. An officer’s primary duty is to protect human life, including the lives of those being placed in custody. Officers may use force “when it is reasonable to ensure the safety of a member of service or a third person, or otherwise protect life, or when it is reasonable to place a person in custody or to prevent escape from custody. In all circumstances, any application or use of force must be reasonable under the circumstances.” In situations where de-escalation techniques are not safe and/or appropriate, officers “will use only the reasonable force to gain control or custody of a subject.” Prior to using force, officers should consider: a. The nature and severity of the crime/circumstances; b. Actions taken by the subject; c. Duration of the action; d. Immediacy of the perceived threat or harm to the subject, members of the service, and/or bystanders; e. Whether the subject is actively resisting custody; Whether the subject is attempting to evade arrest by flight; g. Number of subjects in comparison to the number of MOS; h. Size, age, and condition of the subject; i. Subject’s violent history, if known; j. Presence of hostile crowd or agitators; k. Subject apparently under the influence of a stimulant/narcotic which would affect pain tolerance or the likelihood of violence.

Cellphone footage depicts the circumstances in which PO Orlando, without warning, slapped § 87(2)(b) hand, § 87(2)(g). The video shows PO Orlando using his flashlight to obstruct the recording. At the time, he was walking toward four uniformed officers and his partner at the corner while § 87(2)(b) recorded him closely. As PO Orlando kept his body angled toward § 87(2)(b) he issued no warning before acting to remove the flash from his face.

§ 87(2)(g)

§ 87(2)(g)

it is recommended that **Allegations C and D** be closed as **Substantiated**.

Allegation (E) Abuse of Authority: Police Officer Anthony Orlando damaged § 87(2)(b) property.

Cellphone footage provided by an unidentified friend of § 87(2)(b) [Board Review 01] from durational timestamp 00:11, depicts PO Orlando walking away and § 87(2)(b) following him while recording him using flash. As he is walking away, he swipes his left hand in one quick upward motion, hits § 87(2)(b) hand and phone, sending the phone several feet in the air. The phone crashes down on the ground and bystanders react surprised by this action, stating “Woah.” An unidentified individual stated that PO Orlando could not do that.

§ 87(2)(b) cellphone video recording [Board Review 02] from durational timestamp 00:09 depicts when the phone is hit out of § 87(2)(b) hand, bouncing on the ground and landing with the camera pointing upward. The phone is picked up off the ground by an unidentified female who hands the phone to § 87(2)(b)

§ 87(2)(b) stated [Board Review 03] that because of PO Orlando hitting the phone out of his hands and onto the ground, the rear side of the cellphone was shattered.

§ 87(2)(b) provided a photograph of the rear of his phone [Board Review 06]. The damage to the phone amounted to the rear of the phone being cracked and fragmented in several locations, exposing the inside components of the phone.

PO Orlando stated [Board Review 04] that as he approached the group to investigate the sound he heard moments before, the group became hostile. § 87(2)(b) was especially hostile and angry, yelling and cursing at PO Orlando. After looking around the area, he began walking back toward his vehicle when § 87(2)(b) began to follow him closely and shine the phone flashlight approximately one foot from his face. This interfered with PO Orlando’s ability to see and since § 87(2)(b) was already hostile, PO Orlando feared his safety since he was unable to see § 87(2)(b) hands or any of the group behind him. The lighting conditions were very dark, and PO Orlando also suspected § 87(2)(b) was under the influence because he had observed open containers of alcohol nearby, saw that his eyes were bloodshot, and based on his hostile and angry demeanor. PO Orlando felt that if he continued walking, he could have had something thrown at him or someone hit him because he was in a vulnerable position. PO Orlando did not know why § 87(2)(b) was approaching him closely and why he was impairing his vision with the flash from his phone and moved the phone out of the way. PO Orlando denied striking, slapping, or hitting § 87(2)(b) or his phone. He considered his action to be “moving” the phone out of his face, and his reaction to § 87(2)(b) sticking the flash so close to him resulted in § 87(2)(b) having his phone slip out of his hand. PO Orlando also noted that he had worked the night before and was experiencing a migraine headache. PO Orlando suggested that § 87(2)(b) might not have been holding onto his phone with a tight grip, or that he dramatized the situation and may have released the phone “to hype up the situation.” When § 87(2)(b) was following PO Orlando closely and pointing the flash in his face, he was committing a crime by acting disorderly and obstructing PO Orlando’s ability to conduct his investigation safely and effectively. After reviewing cellphone footage, PO Orlando was unable to note when he believed he commanded § 87(2)(b) to remove the phone from his face before making physical contact with § 87(2)(b). After reviewing the cellphone footage frame-by-frame, PO Orlando held his position that he did not hit the phone

because he did not intend to, and that all he intended to do was remove the flash from his face and move § 87(2)(b) hand away. PO Orlando did not intend to hit the phone or for the phone to be damaged.

In Onderdonk v. State 648 N.Y.S2d 214 (1996) [Board Review 09], the court found that officers may damage property only if it is reasonably necessary to carry out their duties.

Although footage does not depict the damage to the phone and § 87(2)(b) did not allege the phone was damaged in the moment, he later sent a photo of the damage to the rear of his phone which showed that the phone was cracked and fragmented in several locations on the rear, with inside components of the phone exposed. Furthermore, the footage depicts the bystanders' reactions as shock and surprise.

§ 87(2)(g)

it is recommended that Allegation E be closed as **Substantiated**.

Allegation (F) Abuse of Authority: Police Officer Anthony Orlando failed to activate his body-worn camera.

Cellphone footage provided by an unidentified friend of § 87(2)(b) [Board Review 01] depicts PO Orlando approaching the group of individuals with his flashlight deployed and shining the light around the area where the group was congregating. His BWC is equipped on his person but is not visibly recording. The group is yelling and cursing at him as he looks around, and § 87(2)(b) is recording using his cellphone and flash. At 00:09, § 87(2)(b) tells PO Orlando that he is not recording and to turn his BWC on. § 87(2)(b) is pointing his cellphone close to PO Orlando's face and as PO Orlando begins to walk away, follows him. PO Orlando hits the phone out of § 87(2)(b) hand and continues walking to his vehicle without activating his BWC.

§ 87(2)(b) stated [Board Review 03] that he noticed PO Orlando's BWC had no red ring or blinking light indicating it was activated. He asked if PO Orlando was recording and PO Orlando did not respond.

PO Orlando stated [Board Review 04] that he did not activate his BWC because he was not taking any enforcement action. PO Orlando explained that he approached the area to investigate what he heard sounded like either fireworks or gunshots and wanted to ensure there were no spent fireworks or shell casings on the ground. He did not consider the hostile crowd or § 87(2)(b) to have escalated the situation to be adversarial and did not consider this interaction to warrant the activation of his BWC.

NYPD Patrol Guide Procedure 212-123 [Board Review 10] provides officers with guidelines for the use of BWC. An officer is required to: **4.** activate their BWC prior to engaging in any police action including any self-initiated investigative actions. **4.a.** Members of the service are required to record any interactions that escalate to become adversarial or may hold evidentiary value.

Cellphone footage capturing the interaction is comprehensive in depicting the interaction where PO Orlando approached the group of individuals who immediately met him with verbal hostility. § 87(2)(g)

it is recommended that Allegation F be closed as **Substantiated**.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party [Board Review 11].
- PO Orlando has been a member of service for seven years and has been a subject in nine additional CCRB complaints and 29 allegations, of which five were substantiated.:
 - 202104865 involved a substantiated allegation of abuse of authority (vehicle search) against PO Orlando. The Board recommended command discipline A and the NYPD imposed no penalty.
 - 202303078 involved substantiated allegations of abuse of authority (frisk, improper use of BWC, stop) against PO Orlando. The Board recommended command discipline B and the NYPD imposed no penalty.
 - 202304655 involved a substantiated allegation of abuse of authority (frisk) against PO Orlando. The Board recommended command discipline A and the NYPD imposed no penalty. § 87(2)(g)

Mediation, Civil, and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- As of April 30, 2025, the New York City Office of the Comptroller has no record of a Notice of Claim being filed regarding this incident [Board Review 12].
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

RPBP History

- This complaint did not contain any allegations of Racial Profiling/Bias-Based Policing.

Squad No.: 11

Investigator:	<u>Christian Jett</u>	<u>Inv. Christian Jett</u>	<u>10/31/2025</u>
	Signature	Print Title & Name	Date

Squad Leader:	<u>Edwin Pena</u>	<u>IM Edwin Pena</u>	<u>10/31/2025</u>
	Signature	Print Title & Name	Date

Reviewer:	<u></u>	<u></u>	<u></u>
	Signature	Print Title & Name	Date